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February 10, 2025

AS AMENDED

SENATE BILL NO. 135

By: Haste of the Senate

and

Staires of the House

An Act relating to aeronautics technology; amending Sections 1, 2, and 3, Chapter 125, O.S.L. 2024 (3 O.S. Supp. 2024, Sections 501, 502, and 503), which relate to the Oklahoma Aircraft Engine Testing Development Grant Program; modifying short title; expanding purpose of certain grant program; modifying name of certain revolving fund; updating statutory references; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 125, O.S.L.
2024 (3 O.S. Supp. 2024, Section 501), is amended to read as
follows:

Section 501. This act shall be known and may be cited as the "Oklahoma Aircraft and Rocket Engine Testing Development Grant Program".

SECTION 2. AMENDATORY Section 2, Chapter 125, O.S.L.
2024 (3 O.S. Supp. 2024, Section 502), is amended to read as
follows:

1 Section 502. A. There is hereby created, within the Oklahoma
2 Department of Aerospace and Aeronautics, the Oklahoma Aircraft and
3 Rocket Engine Testing Development Grant Program to offer financial
4 assistance by grant to private or public entities for the purpose of
5 expanding the aircraft or rocket engine testing capabilities of this
6 state and developing aircraft or rocket engine testing
7 infrastructure. Grant funding shall be administered based on the
8 potential for a specific project to enhance the aviation, and
9 aerospace, and space propulsion industry of this state. A grant
10 under this program shall be a one-time award.

11 B. Public, private, and nonprofit entities within this state
12 that have sufficient financial and management capacity to complete
13 the requested project are eligible for funding under this program.
14 Applicants shall provide the following information:

15 1. Airline or industry support as evidenced by a letter or
16 other communication directly from the entity stating its support for
17 the project;

18 2. The ability to provide a minimum of forty percent (40%)
19 matching funds for the project; and

20 3. A proposal summary that shall include any background
21 information or history with aircraft or rocket engine testing and
22 development, project description, timeline for completion of
23 project, and estimated budget for the entire project.

1 C. A grant agreement shall be made between any awardee and the
2 Department. The grant agreement shall provide for the conditions of
3 disbursement, shall include a provision requiring the repayment of
4 awarded funds if the terms are not met, and shall include a
5 requirement for awardees to provide ongoing quarterly reports
6 detailing activity related to the project.

7 SECTION 3. AMENDATORY Section 3, Chapter 125, O.S.L.
8 2024 (3 O.S. Supp. 2024, Section 503), is amended to read as
9 follows:

10 Section 503. There is hereby created in the State Treasury a
11 revolving fund for the Oklahoma Department of Aerospace and
12 Aeronautics to be designated the "Oklahoma Aircraft and Rocket
13 Engine Testing Development Grant Program Revolving Fund". The fund
14 shall be a continuing fund, not subject to fiscal year limitations,
15 and shall consist of all monies received by the Department from all
16 monies received by any public or private donations, contributions,
17 and gifts received for the benefit of the fund, and any amounts
18 appropriated by the Legislature, provided for the purpose of funding
19 grants as provided in ~~this act~~ the Oklahoma Aircraft and Rocket
20 Engine Testing Development Grant Program. All monies accruing to
21 the credit of the fund are hereby appropriated and may be budgeted
22 and expended by the Department for the purpose provided for in ~~this~~
23 ~~act~~ the Oklahoma Aircraft and Rocket Engine Testing Development
24 Grant Program. Expenditures from the fund shall be made upon

1 warrants issued by the State Treasurer against claims filed as
2 prescribed by law with the Director of the Office of Management and
3 Enterprise Services for approval and payment.

4 SECTION 4. This act shall become effective July 1, 2025.

5 SECTION 5. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

9 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
10 February 10, 2025 - DO PASS AS AMENDED
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